DOCUMENT 17: LEGAL COMPLIANCE DECLARATION

Rcubes Technologies Pvt Ltd

Statutory Compliance Declaration

As at 31 March 2024

CIN: U72900TN2018PTC124567

DECLARATION BY BOARD OF DIRECTORS

We, the Board of Directors of Rcubes Technologies Private Limited, do hereby solemnly declare and certify as follows:

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1. LITIGATION STATUS

1.1 Pending Litigations

S.No	Case Type	Court/Forum	Parties	Status	Amount Involved (₹)
-	None	-	-	-	-

Declaration: The Company confirms that there are **NO pending litigations** against the Company, its promoters, directors, or subsidiaries as of 31 March 2024.

1.2 Past Litigations (Last 5 Years)

S.No	Case Type	Year	Outcome	Current Status
-	None	-	-	-

Declaration: The Company has **NO history of litigation** in the past 5 years.

1.3 Threatened Proceedings

Nature of Threat	Source	Likelihood	Proposed Action
None	-	-	-

Declaration: There are **NO threatened legal proceedings** against the Company.

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2. INSOLVENCY PROCEEDINGS

2.1 Under Insolvency and Bankruptcy Code (IBC), 2016

Section	Proceeding Type	Status	NCLT Bench	Remarks
Section 7	Corporate Insolvency Resolution Process (CIRP)	Not initiated	N/A	Company solvent
Section 9	Operational Creditor Application	Not filed	N/A	No defaults
Section 10	Voluntary Liquidation	Not applicable	N/A	Company operational

Declaration: The Company confirms that: - ✅ No insolvency petition has been filed against the Company - ✅ No insolvency petition has been filed by the Company - ✅ No admission of insolvency petition by NCLT - ✅ No moratorium

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period declared - ✅ No resolution professional appointed - ✅ No Committee of Creditors (CoC) formed - ✅ No resolution plan approved or rejected

2.2 Under Sick Industrial Companies Act (SICA) - Repealed

Status	Remarks
Not applicable	SICA repealed, no proceedings pending

2.3 BIFR/AAIFR Proceedings

Status	Remarks
Not applicable	No reference made

2.4 Winding Up Petitions

Court	Petitioner	Status	Remarks
None	-	-	No petitions filed

Declaration: The Company confirms that **NO winding up petition** has been filed or is pending against the Company.

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3. REGULATORY VIOLATIONS

3.1 Ministry of Corporate Affairs (MCA)

Compliance	Status	Last Filed Date	Remarks
Annual Return (MGT-7)	✅ Compliant	29-Nov-2023	Filed for FY2023
Financial Statements (AOC-4)	✅ Compliant	29-Oct-2023	Filed for FY2023
DIR-3 KYC (Directors)	✅ Compliant	30-Sep-2023	All directors compliant
DPT-3 (Return of Deposits)	✅ Compliant	30-Jun-2023	Nil deposits
Active Company Tagging	✅ Compliant	Ongoing	Active status
Charge Satisfaction	✅ Compliant	N/A	No charges to satisfy

Declaration: The Company is **FULLY COMPLIANT** with all MCA requirements. No show-cause notices, penalties, or prosecutions pending.

3.2 Registrar of Companies (ROC)

Compliance	Status	Remarks
Change in Registered Office	✅ Compliant	Last changed: 2020
Change in Directors	✅ Compliant	Last change: 2022
Increase in Authorized Capital	✅ Compliant	Last increase: 2020
Alteration of MoA/AoA	✅ Compliant	Last alteration: 2023
Charge Creation/Modification	✅ Compliant	Existing charge: HDFC Bank

Declaration: All filings with ROC are **UP TO DATE**. No defaults or delays.

3.3 Income Tax Department

Compliance	Status	Assessment Year	Remarks
Income Tax Return Filing	✅ Compliant	AY 2024-25	Filed: 31-Oct-2023
Advance Tax Payment	✅ Compliant	FY2024	Quarterly payments
TDS Returns (24Q, 26Q)	✅ Compliant	FY2024	Quarterly filings
Tax Audit Report	✅ Compliant	AY 2024-25	Filed: 30-Sep-2023
Transfer Pricing	N/A	N/A	Below threshold

Declaration: The Company is **FULLY COMPLIANT** with Income Tax laws. No demands, appeals, or proceedings pending.

3.4 Goods and Services Tax (GST)

Compliance	Status	Period	Remarks
GST Registration	✅ Active	Since Jun 2018	Valid GSTIN
GSTR-1 Filing	✅ Compliant	FY2024	12/12 filed
GSTR-3B Filing	✅ Compliant	FY2024	12/12 filed
GST Payment	✅ Compliant	FY2024	All taxes paid
Annual Return (GSTR-9)	✅ Compliant	FY2023	Filed on time
Reconciliation Statement	✅ Compliant	FY2023	Filed on time

Declaration: The Company is **FULLY COMPLIANT** with GST laws. No demands, notices, or proceedings pending.

3.5 Reserve Bank of India (RBI)

Compliance	Status	Remarks
Foreign Investment Reporting	✅ Compliant	All FC-GPR, FC-TRS filed
ECB Compliance	N/A	No external commercial borrowings
LOU/Letter of Credit	✅ Compliant	No defaults

Declaration: No RBI violations or show-cause notices.

3.6 Labour Laws

Compliance	Status	Remarks
PF Act	✅ Compliant	Monthly deposits
ESI Act	✅ Compliant	Monthly deposits
Professional Tax	✅ Compliant	Monthly payments
Shops & Establishment	✅ Compliant	License valid
Contract Labour Act	N/A	No contract labour
Minimum Wages Act	✅ Compliant	Above minimum wages
Payment of Bonus Act	✅ Compliant	Annual bonus paid

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Compliance	Status	Remarks
Gratuity Act	✅ Compliant	Provision maintained

Declaration: The Company is **FULLY COMPLIANT** with all labour laws. No disputes or proceedings pending.

3.7 Environmental Laws

Compliance	Status	Remarks
Environmental Clearance	N/A	Software company - Not applicable
Hazardous Waste	N/A	Not applicable
E-waste Management	✅ Compliant	Authorized recycler engaged

Declaration: No environmental violations.

3.8 Other Regulatory Bodies

Regulator	Compliance	Remarks
SEBI	N/A	Unlisted company
IRDAI	N/A	Not applicable
TRAI	N/A	Not applicable
FEMA	✅ Compliant	Exports compliant

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4. STATUTORY DUES

4.1 Status of Statutory Dues

Statute	Nature of Dues	Amount Outstanding (₹)	Due Date	Status
Income Tax	Self-assessment tax	0	31-Mar-2024	Paid
GST	Output tax liability	0	20-Apr-2024	Paid
PF	Employee + Employer contribution	0	15-Apr-2024	Paid
ESI	Employee + Employer contribution	0	21-Apr-2024	Paid
Professional Tax	Monthly PT	0	Monthly	Paid
TDS	Tax deducted at source	0	Quarterly	Paid

Declaration: The Company has **NO outstanding statutory dues** as of 31 March 2024. No delays in deposits.

4.2 Defaults in Dues

Type of Creditor	Amount Overdue (₹)	Period of Default	Reasons
None	0	-	No defaults

Declaration: The Company has **NO defaults** in payment to: - Financial institutions/banks - Debenture holders - Fixed deposit holders - Trade payables (MSME) - Trade payables (Others) - Statutory dues

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5. FRAUD AND INVESTIGATIONS

5.1 Fraud Reporting

Nature of Fraud	Amount (₹)	Period Detected	Action Taken
None	0	-	-

Declaration: No frauds have been detected or reported against the Company, its officers, or employees.

5.2 Investigations

Agency	Nature	Status	Remarks
None	-	-	No investigations pending

Declaration: The Company is **NOT under investigation** by any regulatory, governmental, or law enforcement agency.

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6. QUALIFICATIONS AND DISCLOSURES

6.1 Audit Qualifications

Audit Type	Year	Qualification	Status
Statutory Audit	FY2024	None - Unmodified opinion	Clean
Tax Audit	FY2024	None	Clean
GST Audit	FY2024	Not applicable (Turnover < ₹5 Cr for audit)	N/A
Secretarial Audit	FY2024	None - Unqualified	Clean

Declaration: All audit reports carry **CLEAN/UNQUALIFIED** opinions.

6.2 Related Party Transactions

Nature	Value (₹ Lakhs)	Approval	Arm's Length
Director Remuneration	24.00	Board	Yes
Rent to Related Party	6.00	Board	Yes
Professional Services	4.00	Board	Yes

Declaration: All related party transactions are at **arm's length** and duly approved.

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7. COMPLIANCE CERTIFICATION

7.1 Companies Act, 2013 Compliance

Section	Compliance	Status
Section 134	Board's Responsibility Statement	Compliant
Section 149	Composition of Board	Compliant
Section 164	Disqualification of Directors	No disqualification
Section 167	Vacation of Office	No vacation
Section 184	Disclosure of Interest	Compliant
Section 185	Loan to Directors	No loans given

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Section	Compliance	Status
Section 186	Loan and Investment by Company	Within limits
Section 188	Related Party Transactions	Compliant
Section 203	Appointment of KMP	Compliant

7.2 Secretarial Standards

Standard	Description	Compliance
SS-1	Meetings of the Board of Directors	Compliant
SS-2	General Meetings	Compliant
SS-3	Dividend	Not applicable (no dividend)
SS-4	Registers and Records	Compliant

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8. DECLARATION STATEMENT

WE HEREBY DECLARE AND CONFIRM THAT:

1. ✅ The Company has **NO pending litigation** against it or its promoters/directors
2. ✅ The Company is **NOT under insolvency proceedings** (voluntary or involuntary)
3. ✅ The Company has **NO regulatory violations** or penalties imposed
4. ✅ The Company is **FULLY COMPLIANT** with all applicable laws and regulations
5. ✅ All statutory dues have been **PAID IN FULL** with no delays
6. ✅ All returns and filings are **UP TO DATE**
7. ✅ There are **NO frauds** detected or under investigation
8. ✅ All audit reports carry **UNQUALIFIED/CLEAN** opinions
9. ✅ The Company maintains **ADEQUATE INTERNAL CONTROLS**
10. ✅ There are **NO MATERIAL UNCERTAINTIES** affecting going concern status

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9. SUPPORTING DOCUMENTS

The following documents are available for verification:

S.No	Document	Reference Number	Date
1	Certificate of Incorporation	U72900TN2018PTC124567	15-Jun-2018
2	Latest Audited Financial Statements	FY2024	15-May-2024
3	GST Registration Certificate	33AABCR1234C1Z5	15-Jun-2018

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